

STATE OF VERMONT

SUPERIOR COURT

PROBATE DIVISION

Unit

Docket No.

In re Guardianship of :

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Custodial Guardianship Agreement and Family Plan

This Family Plan is for the following child(ren) of the parents:

<i>Name of Child</i>	<i>DOB</i>
<i>Name of Child</i>	<i>DOB</i>
<i>Name of Child</i>	<i>DOB</i>
<i>Name of Child</i>	<i>DOB</i>
<i>Name of Child</i>	<i>DOB</i>
<i>Name of Child</i>	<i>DOB</i>
<i>Name of Child</i>	<i>DOB</i>

This Family Plan is agreed upon by the following parties:

- ☐ Guardian/Proposed Guardian: _____
- ☐ Parent: _____
- I am a: (*check one*) ☐ custodial parent ☐ non-custodial parent
- ☐ Parent: _____
- I am a: (*check one*) ☐ custodial parent ☐ non-custodial parent

We hereby agree that the Probate Division may issue an Order establishing a custodial minor guardianship for the minor child(ren) with _____ as guardian under the
Name of guardian

following terms and conditions:

- As the guardian of the child(ren), I, _____ agree that I will:
 - Take custody of the child(ren) and establish the child(ren)'s place of residence provided that I shall not establish a residence for the child outside of the State of Vermont unless authorized by the Court following notice to the parties and an opportunity for hearing.
 - Make decisions related to the child's education;
 - Make decisions related to the child's physical and mental health including consent to medical treatment and medication;
 - Make the child(ren) available for parent child contact as ordered by the Court. If the children are unavailable due to illness or other emergency, I agree that I will work with the parent to schedule make-up contact.
 - Make decisions concerning the child(ren)'s contact with persons other than the parents including reasonable contact with any siblings of the child(ren);

- f) File an annual status report with the Probate Division and provide a copy of the report to each parent.
- g) Consult with _____ prior to making decisions related to: *Name of parent or parents*
- i. Changes in the child(ren)'s school;
 - ii. Changes in the child(ren)'s doctors or other medical providers;
 - iii. Other: _____
- h) Provide the parent(s) named above with notice and the opportunity to participate in:
- i. Non-emergency medical appointments for the child(ren);
 - ii. Meetings with the child(ren)'s teachers or other school personnel;
 - iii. Other: _____

2. As a parent of the child, I, _____ agree that I will: *Name of 1st parent*

- a) Make myself available for parent child contact as ordered by the Court. If due to an emergency, I am unable to have contact with the child, I will notify the Guardian as soon as possible.
- b) Keep the Guardian and the Court informed of any changes in my address or phone number.
- c) Other: _____

If only one parent is signing this agreement, skip to Question 4 and leave Question 3 blank. If two parents are signing the agreement, the other parent's name should be named in paragraph 3.

3. As a parent of the child, I, _____ agree that I will: *Name of 2nd^d parent*

- a) Make myself available for parent child contact as ordered by the Court. If due to an emergency, I am unable to have contact with the child, I will notify the Guardian as soon as possible.
- b) Keep the Guardian and the Court informed of any changes in my address or phone number.
- c) Other: _____

4. Estimated Duration of Guardianship if Known: We agree that the guardianship established by the Court should remain in place until the following event or events take place: *(This section is optional)*

We understand that the guardianship cannot end before the child's 18th birthday without an order from the Probate Court terminating the guardianship.

5. Parent Child Contact Schedule:

We agree that the Court may order contact between the parent(s) named above and the minor child(ren) as follows:

- a) Weekday and/or weekend contact during the school year:

b) Holiday contact:

c) Contact during school vacations:

6. Parent Child Contact for Non-Custodial parent *(to be filled out only if there is an order establishing parent child contact for one of the parents).*

The parent child contact schedule for _____ shall be as set forth
Name of parent

in the attached Order from the ☐ Family Division of the Vermont Superior Court or
☐ Out of State Court .

We, the undersigned, agree that the provisions of this parenting plan may be incorporated into the parental rights and responsibilities order of this court:

Parent's Printed Name

Parent's Signature *Date*

Parent's Printed Name

Parent's Signature *Date*

Proposed Guardian's Printed Name

Proposed Guardian's Signature *Date*